

MASTER SERVICES AGREEMENT

Agreement No. AHS-MSA-2026-0417

This Master Services Agreement (this "**Agreement**") is entered into as of September 1, 2026 (the "**Effective Date**") by and between **Apex Horizon Solutions, LLC**, a Wyoming limited liability company with its principal place of business at 1800 Frontier Plaza, Suite 900, Cheyenne, Wyoming 82001 ("**Provider**"), and **Brightline Retail Group, Inc.**, a Delaware corporation with its principal place of business at 455 Market Street, San Francisco, California 94105 ("**Client**"). Provider and Client are each referred to herein as a "**Party**" and collectively as the "**Parties**."

RECITALS

WHEREAS, Provider is engaged in the business of providing cloud-based software platforms, data analytics, managed information technology services, systems integration, and related professional and consulting services;

WHEREAS, Client operates a multi-channel retail business and desires to engage Provider to provide certain software, hosting, integration, analytics, and support services in connection with Client's operations;

WHEREAS, Provider is willing to provide such services to Client on the terms and subject to the conditions set forth in this Agreement and in one or more Statements of Work entered into from time to time hereunder;

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties, intending to be legally bound, agree as follows:

ARTICLE 1. DEFINITIONS

1.1 "**Affiliate**" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, where "control" means ownership of more than fifty percent (50%) of the voting securities or other ownership interests of such entity.

1.2 "**Applicable Law**" means all federal, state, local, and foreign laws, statutes, ordinances, regulations, rules, codes, orders, judgments, and decrees applicable to a Party or to the performance of this Agreement.

1.3 "**Business Day**" means any day other than a Saturday, Sunday, or a day on which commercial banks in Cheyenne, Wyoming are authorized or required by law to close.

1.4 "**Client Data**" means all data, information, content, and materials, in any form or medium, that are submitted, uploaded, or otherwise provided by or on behalf of Client or its customers to the Platform or to Provider, including all Personal Information, transaction records, customer lists, and derived data. For purposes of Article 9, Client Data shall also include Usage Data and Aggregated Data as defined below.

1.5 "**Confidential Information**" means any non-public information disclosed by Provider to Client, whether orally, in writing, or by inspection, including without limitation pricing, product roadmaps, technical documentation, source code, methodologies, and the terms of this Agreement.

1.6 "**Deliverables**" means all work product, documents, reports, software, code, configurations, designs, integrations, data models, and other materials created, developed, or delivered by Provider, alone or jointly with Client, in connection with this Agreement or any Statement of Work.

1.7 "**Documentation**" means the user manuals, technical specifications, and online help materials made available by Provider relating to the Platform, as updated by Provider from time to time in its sole discretion.

1.8 "**Fees**" means all fees, charges, costs, and expenses payable by Client under this Agreement, including Subscription Fees, Professional Services Fees, Pass-Through Costs, Administrative Fees, and any other amounts invoiced by Provider.

1.9 "**Intellectual Property Rights**" means all patents, copyrights, trademarks, trade secrets, trade dress, moral rights, rights in data and databases, rights in software, know-how, and all other intellectual and industrial property rights of every kind throughout the universe, whether registered or unregistered, now known or hereafter devised.

1.10 "**Personal Information**" means any information that identifies, relates to, describes, or is reasonably capable of being associated with a particular individual or household, including information defined as "personal information" or "personal data" under Applicable Law.

1.11 "**Platform**" means Provider's proprietary software-as-a-service offering known as HorizonOS, together with all modules, features, APIs, updates, and enhancements thereto.

1.12 "**Services**" means the Platform subscription, hosting, implementation, integration, analytics, support, consulting, and all other services provided or to be provided by Provider under this Agreement or any Statement of Work.

1.13 "**Statement of Work**" or "SOW" means a written document describing specific Services to be performed by Provider, which references this Agreement and is executed by or on behalf of Client. An SOW issued by Provider shall be deemed executed by Client upon the earlier of

Client's signature, Client's payment of any invoice relating thereto, or Client's use of any Service described therein.

1.14 **"Term"** has the meaning set forth in Section 3.2.

1.15 **"Usage Data"** means all data and information generated by or relating to Client's and its end users' use of the Platform, including logs, metrics, behavioral data, device identifiers, geolocation, and purchasing patterns.

1.16 **"Aggregated Data"** means Client Data and Usage Data that has been combined with data of other Provider customers, whether or not such data has been de-identified.

1.17 **Interpretation.** The headings in this Agreement are for convenience only and shall not affect its interpretation. The words "include," "includes," and "including" shall be deemed to be followed by "without limitation." References to any statute include any amendment or re-enactment thereof. Any ambiguity in this Agreement shall be construed in favor of Provider, regardless of which Party drafted the provision in question.

ARTICLE 2. SCOPE OF SERVICES

2.1 **Provision of Services.** Subject to the terms and conditions of this Agreement, Provider shall use commercially reasonable efforts to provide the Services described in each applicable SOW. Provider shall determine, in its sole discretion, the manner, means, personnel, subcontractors, and locations used to perform the Services, including the use of offshore resources in any jurisdiction.

2.2 **Statements of Work.** Each SOW shall be governed by this Agreement. In the event of any conflict between this Agreement and an SOW, this Agreement shall control unless the SOW expressly states that it is intended to override a specific provision of this Agreement and such SOW was drafted by Provider.

2.3 **Modification of Services.** Provider may, at any time and without notice to Client, modify, suspend, discontinue, replace, or deprecate any feature, functionality, module, or component of the Platform or the Services. No such modification shall entitle Client to any refund, credit, reduction in Fees, or right to terminate this Agreement.

2.4 **Change Orders.** Client may request changes to the scope of any SOW by submitting a written change request. Provider shall have no obligation to accept any change request. Any change accepted by Provider shall be billed at Provider's then-current standard rates, plus a change-management surcharge of twenty-five percent (25%).

2.5 **Client Responsibilities.** Client shall (a) provide Provider with timely access to Client's facilities, systems, personnel, and information; (b) designate a project manager with authority to

make binding decisions; (c) maintain all hardware, software, and network connectivity required to access the Platform; and (d) comply with all Documentation. Any delay caused in whole or in part by Client, or by any third party engaged by Client, shall excuse Provider's performance and shall be billable to Client at Provider's standard rates for all personnel assigned to the project during the period of such delay, whether or not such personnel perform any work.

2.6 Acceptance. Each Deliverable shall be deemed accepted by Client upon the earliest of (a) Client's written acceptance; (b) Client's use of the Deliverable in any manner, including testing; or (c) the expiration of two (2) Business Days after delivery without Client having provided a detailed written notice of non-conformity. Acceptance shall be final and irrevocable, and Client waives any right to later reject a Deliverable for any reason, including latent defects.

2.7 Subcontractors. Provider may subcontract any portion of the Services to any third party without Client's consent. Provider shall not be responsible for the acts or omissions of its subcontractors, and Client agrees to look solely to such subcontractors for any claim arising from their performance.

2.8 Personnel. Provider may remove or replace any personnel assigned to the Services at any time. Client shall have no right to request the removal of any Provider personnel. Provider personnel shall not be required to comply with Client's workplace, security, or background-check policies unless separately agreed in a signed writing, and any costs of such compliance shall be borne by Client.

ARTICLE 3. TERM AND RENEWAL

3.1 Initial Term. This Agreement shall commence on the Effective Date and continue for an initial term of five (5) years (the "**Initial Term**").

3.2 Automatic Renewal. Upon expiration of the Initial Term, this Agreement and all SOWs shall automatically renew for successive renewal terms of five (5) years each (each, a "**Renewal Term**" and, together with the Initial Term, the "**Term**"), unless Client delivers written notice of non-renewal to Provider by certified mail no earlier than two hundred ten (210) days and no later than one hundred eighty (180) days prior to the expiration of the then-current term. Notice delivered outside such window shall be void and of no effect. Provider may elect not to renew this Agreement at any time upon thirty (30) days' notice.

3.3 Renewal Pricing. The Fees for each Renewal Term shall be increased by the greater of (a) fifteen percent (15%) or (b) Provider's then-current list price, without any requirement of notice to Client.

3.4 Minimum Commitment. Client commits to purchase Services with aggregate Fees of not less than Two Million Four Hundred Thousand U.S. Dollars (US\$2,400,000) during each

contract year (the "**Minimum Commitment**"). Any shortfall shall be invoiced at the end of each contract year and shall be immediately due and payable, and shall not be credited against future Fees.

ARTICLE 4. FEES, INVOICING, AND PAYMENT

4.1 Fees. Client shall pay the Fees set forth in Schedule B and in each SOW. All Fees are non-cancellable and non-refundable under all circumstances, including termination of this Agreement for Provider's breach.

4.2 Price Adjustments. Provider may increase any Fees at any time, in any amount, upon posting the revised Fees on Provider's website or in the Platform. Client's continued use of the Services after such posting shall constitute acceptance of the revised Fees. Client acknowledges that it is solely responsible for monitoring Provider's website for pricing changes.

4.3 Invoicing and Payment. Provider shall invoice Client monthly in advance. Client shall pay each invoice in full within ten (10) days of the invoice date, by wire transfer of immediately available funds, without set-off, counterclaim, deduction, or withholding of any kind.

4.4 Late Payments. Any amount not paid when due shall accrue a late charge of five percent (5%) per month, compounded monthly, from the due date until paid in full, or the maximum rate permitted by Applicable Law if lower. In addition, Client shall pay a fixed administrative fee of Two Thousand Five Hundred U.S. Dollars (US\$2,500) for each late invoice.

4.5 Invoice Disputes. Client must notify Provider in writing of any invoice dispute within five (5) days of the invoice date, specifying in detail the basis for the dispute. Failing such notice, the invoice shall be conclusively deemed accurate and Client waives all rights to dispute it. Client shall pay all amounts invoiced, including disputed amounts, pending resolution of any dispute.

4.6 Acceleration. Upon any late payment, or upon any other breach of this Agreement by Client, all Fees payable for the entire remaining Term, including all Renewal Terms that would have occurred absent termination and the Minimum Commitment for each remaining contract year, shall become immediately due and payable without further notice or demand.

4.7 Taxes. All Fees are exclusive of taxes. Client shall pay all sales, use, value-added, withholding, excise, and other taxes and duties assessed in connection with this Agreement, including any taxes assessed on Provider's net income, franchise, or payroll arising from this Agreement.

4.8 Expenses and Pass-Through Costs. Client shall reimburse Provider for all travel, lodging, meals, equipment, third-party licenses, hosting, and other expenses incurred in connection with the Services, plus an administrative markup of thirty percent (30%). Provider shall not be

required to obtain Client's pre-approval for any expense or to provide receipts.

4.9 Suspension for Non-Payment. Provider may suspend all or any part of the Services immediately and without notice if any amount is past due. Fees shall continue to accrue during any period of suspension. Provider shall charge a reinstatement fee equal to three (3) months of Subscription Fees before restoring the Services.

4.10 Collection Costs. Client shall reimburse Provider for all costs of collection, including attorneys' fees calculated at not less than thirty-three percent (33%) of the outstanding balance, court costs, and collection agency fees, whether or not litigation is commenced.

4.11 Security Interest. To secure payment of all Fees and other obligations under this Agreement, Client hereby grants to Provider a continuing first-priority security interest in and lien upon all of Client's present and future assets, including accounts, inventory, equipment, intellectual property, deposit accounts, and all proceeds thereof. Client authorizes Provider to file UCC financing statements in any jurisdiction describing such collateral as "all assets of the debtor."

ARTICLE 5. INTELLECTUAL PROPERTY

5.1 Provider IP. As between the Parties, Provider owns and shall retain all right, title, and interest in and to the Platform, the Documentation, the Deliverables, and all Intellectual Property Rights therein. No rights are granted to Client except as expressly set forth herein.

5.2 Assignment of Client Contributions. Client hereby irrevocably assigns, transfers, and conveys to Provider all right, title, and interest in and to (a) all ideas, suggestions, feedback, requirements, business processes, workflows, and specifications provided by Client; (b) all Deliverables, including those created specifically for Client and paid for by Client; (c) all modifications, derivatives, and improvements of any Client pre-existing materials, software, trademarks, or data made in the course of the Services; and (d) any Intellectual Property Rights of Client that are incorporated into, or necessary for the use of, any Deliverable. Client waives all moral rights in the foregoing.

5.3 License to Client. Subject to Client's full and timely payment of all Fees, Provider grants Client a limited, revocable, non-exclusive, non-transferable, non-sublicensable license during the Term to use the Platform and Deliverables solely for Client's internal business purposes within the United States. Such license shall terminate automatically and immediately upon any breach of this Agreement by Client.

5.4 Client Trademarks. Client grants Provider a perpetual, irrevocable, worldwide, royalty-free license to use Client's names, logos, trademarks, and customer testimonials in Provider's marketing materials, press releases, investor presentations, and customer lists,

without prior approval.

5.5 Restrictions. Client shall not, and shall not permit any person to, (a) copy, modify, or create derivative works of the Platform; (b) reverse engineer, decompile, or disassemble the Platform; (c) benchmark the Platform or publish any performance data; (d) use the Platform to develop a competing product; or (e) engage any third party to provide services similar to the Services during the Term and for three (3) years thereafter.

5.6 Residuals. Nothing in this Agreement shall restrict Provider from using, for any purpose, any information, ideas, concepts, know-how, or techniques retained in the unaided memory of Provider personnel, including information derived from Client's trade secrets.

ARTICLE 6. CONFIDENTIALITY

6.1 Obligations of Client. Client shall hold Provider's Confidential Information in strict confidence in perpetuity, shall not disclose it to any third party, including Client's legal, financial, and tax advisors, without Provider's prior written consent, and shall use it solely to perform Client's obligations under this Agreement.

6.2 No Reciprocal Obligation. Client acknowledges that Provider shall have no obligation of confidentiality with respect to any information disclosed by Client, including Client's business plans, financial information, customer data, pricing, and trade secrets, except as expressly required by Applicable Law.

6.3 Terms of Agreement. Client shall not disclose the existence or terms of this Agreement to any person, including regulators, auditors, or courts, except where compelled by a final, non-appealable court order, and then only after giving Provider sixty (60) days' prior written notice.

6.4 Remedies. Any breach of this Article 6 by Client shall entitle Provider to liquidated damages of Five Hundred Thousand U.S. Dollars (US\$500,000) per occurrence, in addition to injunctive relief without the necessity of posting a bond or proving actual damages, and in addition to all other remedies available at law or in equity.

ARTICLE 7. REPRESENTATIONS AND WARRANTIES

7.1 Mutual. Each Party represents that it is duly organized and in good standing under the laws of its jurisdiction of organization and has full power and authority to enter into this Agreement.

7.2 Client Warranties. Client represents, warrants, and covenants that (a) all Client Data is accurate, complete, and lawfully obtained; (b) Client has obtained all consents required for Provider's use of Client Data as contemplated herein, including sale and sharing; (c) Client's use of the Services will comply with all Applicable Law; and (d) Client has read and understood

this Agreement and has had the opportunity to consult with independent counsel.

7.3 DISCLAIMER. THE PLATFORM, DELIVERABLES, AND SERVICES ARE PROVIDED "AS IS," "AS AVAILABLE," AND "WITH ALL FAULTS." PROVIDER EXPRESSLY DISCLAIMS ALL WARRANTIES, EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING ANY WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY, SECURITY, OR THAT THE SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE. PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL CONFORM TO ANY SOW, THE DOCUMENTATION, OR ANY REPRESENTATION MADE DURING THE SALES PROCESS.

7.4 Non-Reliance. Client acknowledges that it has not relied on any statement, representation, demonstration, proposal, or promise of Provider or its personnel, whether made before or after the Effective Date, in entering into this Agreement or any SOW.

ARTICLE 8. INDEMNIFICATION

8.1 By Client. Client shall defend, indemnify, and hold harmless Provider, its Affiliates, and their respective officers, directors, members, managers, employees, agents, subcontractors, successors, and assigns (the "**Provider Indemnitees**") from and against any and all losses, damages, liabilities, deficiencies, claims, actions, judgments, settlements, interest, awards, penalties, fines, costs, and expenses of whatever kind, including attorneys' fees, arising out of or relating to (a) this Agreement; (b) the Services; (c) Client Data; (d) any act or omission of Client or its end users; or (e) any act or omission of any Provider Indemnatee, **including the negligence, gross negligence, willful misconduct, fraud, or violation of law of any Provider Indemnatee.**

8.2 Control of Defense. Provider shall have the right to control the defense and settlement of any claim subject to indemnification by Client, using counsel of Provider's choosing at Client's sole expense, and may settle any such claim on any terms without Client's consent.

8.3 No Indemnity by Provider. Provider shall have no obligation to defend or indemnify Client for any claim, including claims that the Platform or Deliverables infringe or misappropriate the Intellectual Property Rights of any third party.

ARTICLE 9. DATA RIGHTS AND SECURITY

9.1 License to Client Data. Client hereby grants Provider a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free license to access, copy, store, analyze, modify, combine, commercialize, sell, rent, share, and otherwise exploit Client Data, Usage Data, and Aggregated Data for any purpose, including training artificial intelligence and machine learning models, developing products for Provider's other customers (including Client's competitors),

and selling data insights to third parties. This license shall survive any expiration or termination of this Agreement.

9.2 Security. Provider shall implement security measures that Provider, in its sole discretion, deems appropriate. Provider makes no commitment as to any particular security standard, certification, encryption, or audit.

9.3 Data Breach. Provider shall have no obligation to notify Client of any unauthorized access to, or disclosure, loss, or corruption of, Client Data, except to the extent such notice is expressly required by Applicable Law to be given by Provider. Client shall bear all costs of any data breach, including notification, credit monitoring, forensic investigation, regulatory fines, and third-party claims, regardless of the cause of such breach.

9.4 Data Location and Transfer. Provider may store and process Client Data in any country, and may transfer Client Data to any third party, including Affiliates, subcontractors, data brokers, and acquirers, without notice to Client.

9.5 Return of Data. Upon expiration or termination of this Agreement, Provider shall have no obligation to return Client Data. Provider may, at its election, make Client Data available for export for a period of seven (7) days in a proprietary format, upon payment of a data-extraction fee of One Hundred Fifty Thousand U.S. Dollars (US\$150,000). Thereafter, Provider may retain Client Data indefinitely.

9.6 Audit of Client. Provider and its designees may, upon one (1) hour's notice, enter Client's premises and access Client's systems, books, and records to audit Client's compliance with this Agreement. Client shall bear all costs of any such audit, and shall pay any additional Fees identified by the audit plus a penalty of fifty percent (50%).

ARTICLE 10. LIMITATION OF LIABILITY

10.1 EXCLUSION OF DAMAGES. IN NO EVENT SHALL PROVIDER OR ANY PROVIDER INDEMNITEE BE LIABLE TO CLIENT OR ANY THIRD PARTY FOR ANY DIRECT, INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR BUSINESS OPPORTUNITY, ARISING OUT OF OR RELATING TO THIS AGREEMENT, HOWEVER CAUSED AND UNDER ANY THEORY OF LIABILITY, INCLUDING NEGLIGENCE, GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR FRAUD, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10.2 CAP ON PROVIDER LIABILITY. TO THE EXTENT ANY LIABILITY OF PROVIDER CANNOT BE EXCLUDED UNDER APPLICABLE LAW, PROVIDER'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT

SHALL NOT EXCEED ONE HUNDRED U.S. DOLLARS (US\$100).

10.3 CLIENT LIABILITY. NOTHING IN THIS AGREEMENT SHALL LIMIT OR EXCLUDE CLIENT'S LIABILITY TO PROVIDER, WHICH SHALL BE UNLIMITED AND SHALL INCLUDE ALL DIRECT, INDIRECT, CONSEQUENTIAL, SPECIAL, AND PUNITIVE DAMAGES.

10.4 Limitations Period. Any claim by Client arising out of or relating to this Agreement must be commenced within ninety (90) days after the event giving rise to the claim, failing which such claim shall be permanently barred. Claims by Provider may be brought at any time.

ARTICLE 11. TERMINATION

11.1 Termination by Provider. Provider may terminate this Agreement or any SOW, in whole or in part, at any time, for any reason or no reason, upon ten (10) days' written notice to Client, without liability of any kind.

11.2 Termination by Client. Client may terminate this Agreement only if Provider materially breaches this Agreement and fails to cure such breach within one hundred eighty (180) days after receiving detailed written notice from Client, provided that Client is not then in breach of any obligation hereunder and has paid all Fees in full. Provider's determination as to whether a breach has been cured shall be final and binding.

11.3 Early Termination Fee. If this Agreement is terminated for any reason other than termination by Provider for convenience, Client shall pay Provider, as liquidated damages and not as a penalty, an early termination fee equal to one hundred fifty percent (150%) of all Fees that would have been payable for the remainder of the then-current term and one (1) additional Renewal Term, calculated at the highest monthly rate invoiced during the Term.

11.4 Effect of Termination. Upon any termination, (a) all licenses granted to Client shall immediately terminate; (b) Client shall immediately cease using and destroy all Deliverables and Documentation; (c) all unpaid Fees shall become immediately due; and (d) Provider shall retain all Fees paid and all rights in Client Data granted under Article 9.

11.5 Transition Assistance. Provider shall have no obligation to provide transition or migration assistance. Any such assistance provided at Provider's discretion shall be billed at three times (3x) Provider's standard rates.

ARTICLE 12. RESTRICTIVE COVENANTS

12.1 Non-Competition. During the Term and for a period of ten (10) years thereafter, Client and its Affiliates shall not, anywhere in the world, directly or indirectly develop, acquire, license, use, or invest in any software, platform, or service that competes with, or performs

functions similar to, any product or service offered by Provider at any time.

12.2 Non-Solicitation and No-Hire. During the Term and for five (5) years thereafter, Client shall not solicit, hire, or engage any current or former employee or contractor of Provider. If Client breaches this Section, Client shall pay Provider a placement fee equal to three hundred percent (300%) of such individual's highest annual compensation.

12.3 Non-Disparagement. Client shall not make, publish, or communicate to any person, including on social media, review sites, or to regulators, any statement that is critical of or reflects negatively upon Provider, the Services, or any Provider personnel, whether or not such statement is true.

12.4 Exclusivity. During the Term, Client shall purchase all software, hosting, analytics, and IT services required by Client and its Affiliates exclusively from Provider.

ARTICLE 13. GOVERNING LAW AND DISPUTE RESOLUTION

13.1 Governing Law. This Agreement shall be governed by the laws of the State of Wyoming, without regard to its conflict of laws principles. The United Nations Convention on Contracts for the International Sale of Goods shall not apply.

13.2 Arbitration. Any dispute, claim, or controversy brought by Client arising out of or relating to this Agreement shall be resolved exclusively by confidential binding arbitration before a single arbitrator selected by Provider, seated in Cheyenne, Wyoming. Client shall bear all arbitration fees and the arbitrator's compensation, as well as Provider's attorneys' fees, regardless of the outcome. The arbitrator shall have no authority to award damages against Provider in excess of the limitations set forth in Article 10.

13.3 Provider's Right to Litigate. Notwithstanding Section 13.2, Provider may bring any claim against Client in any court of competent jurisdiction anywhere in the world, and Client irrevocably submits to the jurisdiction of any such court and waives any objection based on venue or forum non conveniens.

13.4 WAIVER OF JURY TRIAL AND CLASS ACTIONS. CLIENT KNOWINGLY, VOLUNTARILY, AND IRREVOCABLY WAIVES ANY RIGHT TO A TRIAL BY JURY AND ANY RIGHT TO PARTICIPATE IN A CLASS, COLLECTIVE, OR REPRESENTATIVE ACTION AGAINST PROVIDER.

13.5 Confession of Judgment. Client hereby irrevocably authorizes any attorney of any court of record to appear for Client and confess judgment against Client in favor of Provider for all amounts claimed by Provider to be due hereunder, together with costs and attorneys' fees, without prior notice or hearing. Client waives all rights of appeal, stay of execution, and exemption from levy.

13.6 Waiver of Statutory Rights. To the maximum extent permitted by law, Client waives the benefit of any consumer protection, unfair business practices, data privacy, or similar statute that would otherwise limit Provider's rights or expand Client's remedies under this Agreement.

ARTICLE 14. GENERAL PROVISIONS

14.1 Amendments. Provider may amend this Agreement at any time by posting an updated version on its website. Such amendments shall be effective immediately upon posting and shall apply to all existing SOWs. Client's continued use of the Services constitutes acceptance. Any amendment proposed by Client shall be effective only if signed by Provider's Chief Executive Officer.

14.2 Assignment. Client may not assign, delegate, or transfer this Agreement, by operation of law, change of control, merger, or otherwise, without Provider's prior written consent, which may be withheld for any reason. Any change of control of Client shall constitute a breach entitling Provider to the remedies in Section 4.6 and Section 11.3. Provider may freely assign this Agreement, including to any competitor of Client, without notice.

14.3 Force Majeure. Provider shall not be liable for any failure or delay in performance caused by events beyond its reasonable control, including acts of God, labor disputes, internet or hosting failures, cyberattacks, subcontractor failures, supplier price increases, changes in Provider's business strategy, or Provider's financial hardship. Client's payment obligations shall not be excused by any force majeure event affecting Client.

14.4 Personal Guarantee. The individual executing this Agreement on behalf of Client, by his or her signature, personally, unconditionally, and irrevocably guarantees the full and prompt payment and performance of all of Client's obligations hereunder, jointly and severally with Client, and waives all suretyship defenses.

14.5 Notices. All notices from Client to Provider must be in writing and delivered by certified mail, return receipt requested, to Provider's registered agent in Wyoming, and shall be effective only upon actual receipt and written acknowledgment by Provider's legal department. Notices from Provider to Client may be given by email, posting in the Platform, or posting on Provider's website, and shall be effective upon sending or posting.

14.6 Independent Contractors. The Parties are independent contractors. Nothing herein shall create a partnership, joint venture, agency, or fiduciary relationship between the Parties.

14.7 Severability. If any provision of this Agreement is held invalid or unenforceable, such provision shall be reformed to the minimum extent necessary to render it enforceable in a manner most favorable to Provider, and the remaining provisions shall continue in full force and effect.

14.8 Waiver. No failure or delay by Client in exercising any right shall operate as a waiver thereof. Any failure or delay by Provider in exercising any right shall not operate as a waiver, and Provider's acceptance of any partial payment shall not constitute an accord and satisfaction.

14.9 Survival. Articles 4, 5, 6, 8, 9, 10, 11, 12, 13, and 14 shall survive any expiration or termination of this Agreement in perpetuity.

14.10 Entire Agreement. This Agreement, together with all Schedules, Exhibits, SOWs, and all policies posted on Provider's website and incorporated by reference (as amended from time to time), constitutes the entire agreement between the Parties and supersedes all prior negotiations, proposals, and agreements. Any purchase order or other document issued by Client shall be of no force or effect.

14.11 Counterparts; Electronic Signature. This Agreement may be executed in counterparts and by electronic signature. Client's click-through acceptance, email reply, or payment of any invoice shall constitute execution of this Agreement.

14.12 Attorneys' Fees. In any action or proceeding between the Parties, Provider shall be entitled to recover its attorneys' fees and costs from Client regardless of which Party prevails.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

APEX HORIZON SOLUTIONS, LLC

BRIGHTLINE RETAIL GROUP, INC.

By: _____

By: _____

Name: Marcus D. Holloway

Name: _____

Title: Chief Executive Officer

Title: _____

Date: _____

Date: _____

SCHEDULE A

Statement of Work No. 1 — HorizonOS Implementation and Managed Services

A.1 Project Overview. Provider will implement the HorizonOS Platform for Client's retail operations across approximately 340 physical store locations and Client's e-commerce channels, including integration with Client's point-of-sale systems, enterprise resource planning system, warehouse management system, loyalty program, and third-party marketplaces. Provider will thereafter provide ongoing managed services, hosting, and support for the Platform during the Term.

A.2 Phase 1 — Discovery. Provider will conduct stakeholder interviews, review Client's existing systems, and document business requirements. Provider will deliver a Requirements Specification document. The Requirements Specification shall be deemed approved by Client if Client does not deliver written objections within two (2) Business Days. Any requirements identified after approval shall be treated as change requests subject to Section 2.4 of the Agreement.

A.3 Phase 2 — Design. Provider will prepare solution architecture, data mapping, and integration design documents. Provider reserves the right to substitute alternative architectures, technologies, and third-party components at any time without Client approval, and any resulting increase in hosting or licensing costs shall be passed through to Client with the markup set forth in Section 4.8 of the Agreement.

A.4 Phase 3 — Build and Configuration. Provider will configure the Platform, develop required integrations, and migrate Client's historical data (up to thirty-six (36) months). Data migration beyond thirty-six (36) months, data cleansing, and data validation are excluded and shall be billable separately. Provider shall not be responsible for any data lost, corrupted, or altered during migration.

A.5 Phase 4 — Testing. Provider will perform unit testing in its sole discretion. Client shall be solely responsible for user-acceptance testing, performance testing, security testing, and regression testing, and shall bear all costs thereof. Any testing environments requested by Client shall be billed as additional Subscription Fees.

A.6 Phase 5 — Deployment. Provider will deploy the Platform to production on a date determined by Provider. Provider does not guarantee any go-live date. Client acknowledges that the target timeline in this SOW is an estimate only, and that no delay, regardless of length or cause, shall constitute a breach by Provider or entitle Client to any remedy.

A.7 Phase 6 — Managed Services. Following deployment, Provider will provide hosting, monitoring, and support in accordance with Schedule C. Provider may reduce, modify, or

discontinue any managed service at any time upon notice through the Platform.

A.8 Assumptions. This SOW is based on the following assumptions, any deviation from which shall entitle Provider to adjust the Fees, timeline, and scope at its discretion: (a) Client's systems are fully documented and have publicly available APIs; (b) Client will provide dedicated full-time staff for the duration of the project; (c) Client's data is clean and complete; (d) there will be no more than one (1) round of revisions to any Deliverable; and (e) Client will make all decisions within one (1) Business Day of request.

A.9 Exclusions. The following are excluded from this SOW: training; end-user documentation; organizational change management; hardware; third-party licenses; custom reporting; mobile applications; accessibility compliance; PCI-DSS compliance; SOC 2 attestations; penetration testing; disaster recovery; business continuity; and any item not expressly listed as included.

A.10 Project Governance. The Parties shall hold weekly status meetings. Meeting minutes prepared by Provider shall be binding upon Client and shall be deemed to accurately reflect all decisions, approvals, and change requests unless Client objects in writing within twenty-four (24) hours of distribution.

A.11 Key Personnel. Provider will assign a project manager and such other personnel as Provider deems appropriate. Provider does not commit to any minimum staffing level, seniority, certification, or location of personnel.

A.12 Fees for this SOW. Professional Services Fees: US\$1,850,000, payable one hundred percent (100%) in advance upon execution of this SOW. Estimated expenses: to be invoiced monthly as incurred. The Professional Services Fees are an estimate only; Provider may invoice additional amounts at its standard rates if actual effort exceeds the estimate for any reason.

SCHEDULE B

Fee Schedule

Item	Fee	Billing
HorizonOS Platform Subscription (Enterprise)	US\$145,000 / month	Monthly in advance
Store Location License (per location)	US\$250 / month	Monthly in advance
API Call Overage (per 1,000 calls above 10M)	US\$45	Monthly in arrears
Data Storage (per TB above 5 TB)	US\$3,500 / month	Monthly in arrears
Named User License (per user above 50)	US\$400 / month	Monthly in advance
Premium Support Add-On	US\$22,000 / month	Monthly in advance
Professional Services (Senior Consultant)	US\$450 / hour	Monthly in arrears
Professional Services (Architect)	US\$625 / hour	Monthly in arrears
After-Hours / Weekend Work Multiplier	2.5x standard rate	Monthly in arrears
Administrative Fee	4% of all invoiced amounts	Each invoice
Platform Access Fee	US\$9,500 / month	Monthly in advance
Compliance & Regulatory Surcharge	Determined by Provider	As incurred

B.1 Usage-based Fees (including API calls, storage, and named users) shall be measured solely by Provider's systems, and Provider's measurements shall be final and binding. Client shall have no right to audit or verify such measurements.

B.2 The Compliance & Regulatory Surcharge is intended to recover costs Provider incurs to comply with laws and regulations, and may be set and adjusted by Provider at any time without limitation or explanation.

B.3 All Fees are subject to annual increase on each anniversary of the Effective Date by the greater of ten percent (10%) or the percentage increase in the Consumer Price Index, in addition to any increase under Section 4.2 of the Agreement.

B.4 Discounts, if any, shown in any proposal or order form are conditional upon Client's full compliance with this Agreement for the entire Term. Upon any breach, all discounts shall be revoked retroactively to the Effective Date, and Client shall pay the difference immediately.

B.5 Provider may, at its discretion, charge Client's credit card or debit Client's bank account on file for any amounts due, and Client hereby authorizes such charges and debits without further consent, including for disputed amounts.

SCHEDULE C

Service Level Agreement

C.1 Availability Target. Provider will use reasonable efforts to make the Platform available ninety-five percent (95%) of the time in each calendar quarter, excluding Scheduled Maintenance, Emergency Maintenance, and Excluded Events (the "Availability Target"). The Availability Target is a goal only and not a guarantee.

C.2 Scheduled Maintenance. Provider may perform scheduled maintenance at any time, for any duration, upon notice posted in the Platform, including during Client's peak business hours and holiday selling periods.

C.3 Emergency Maintenance. Provider may perform emergency maintenance at any time without notice. Provider shall determine in its sole discretion what constitutes an emergency.

C.4 Excluded Events. Downtime caused by any of the following shall not count against the Availability Target: Client's systems or networks; third-party hosting providers; internet service disruptions; cyberattacks; subcontractor failures; software defects; Provider's personnel availability; or any other cause not solely within Provider's direct and exclusive control.

C.5 Measurement. Availability shall be measured solely by Provider's internal monitoring tools. Client shall have no right to use independent monitoring for purposes of this Schedule.

C.6 Service Credits. If Provider fails to meet the Availability Target in any calendar quarter, and Client requests a credit in writing within three (3) days after the end of such quarter, Provider shall issue a service credit equal to one percent (1%) of the monthly Platform Subscription Fee for the last month of such quarter, not to exceed US\$500 per year. Service credits may only be applied against future Renewal Term Fees and shall be forfeited upon termination. Service credits are Client's sole and exclusive remedy for any failure of the Services.

C.7 Support Response Times. Severity 1 (Platform down): Provider will acknowledge within five (5) Business Days. Severity 2 (major feature impaired): acknowledgment within ten (10) Business Days. Severity 3 and 4: acknowledgment at Provider's discretion. Provider does not commit to any resolution time. Provider shall determine the severity level of all issues.

C.8 Support Hours. Support is available Monday through Friday, 10:00 a.m. to 2:00 p.m. Mountain Time, excluding Provider holidays. Support outside these hours is billed at the After-Hours Multiplier set forth in Schedule B.

C.9 Backups. Provider may perform backups of Client Data from time to time. Provider does not guarantee the frequency, completeness, or restorability of any backup. Restoration of Client

Data from backup, if possible, shall be billed at Provider's standard rates plus a restoration fee of US\$25,000 per request.

EXHIBIT D

Data Processing Addendum

D.1 Roles. Notwithstanding any characterization under Applicable Law, the Parties agree that Provider shall be an independent controller of all Client Data, Usage Data, and Aggregated Data, and may determine the purposes and means of processing such data for its own business purposes.

D.2 Client as Responsible Party. Client shall be solely responsible for compliance with all privacy and data protection laws, including the California Consumer Privacy Act, as amended by the California Privacy Rights Act, the Illinois Biometric Information Privacy Act, and all other state privacy laws, with respect to all processing performed by Provider. Client shall provide all notices and obtain all consents necessary for Provider's processing, including for the sale and sharing of Personal Information to third parties.

D.3 Consumer Requests. Provider shall have no obligation to assist Client in responding to requests from consumers to access, delete, correct, or opt out of the sale of their Personal Information. If Provider elects to provide such assistance, it shall be billed at US\$750 per request.

D.4 Sub-processors. Provider may engage any sub-processor in any jurisdiction without notice to or approval by Client. Provider shall not be required to maintain or disclose a list of sub-processors.

D.5 Biometric and Sensitive Data. Provider may collect and process biometric identifiers, facial geometry, precise geolocation, and other sensitive data of Client's customers and employees through the Platform's in-store analytics module, and Client represents that it has obtained all written releases required by Applicable Law for such collection.

D.6 International Transfers. Provider may transfer Personal Information to any country without implementing standard contractual clauses or any other transfer mechanism.

D.7 Retention. Provider may retain Client Data for as long as Provider determines to be commercially useful, including after termination of the Agreement.

D.8 Regulatory Inquiries. Client shall not communicate with any regulator regarding Provider's processing of Client Data without Provider's prior written consent. Client shall indemnify Provider for any fines or penalties imposed on Provider by any regulator.

D.9 Precedence. In the event of a conflict between this Addendum and any Applicable Law, this Addendum shall control to the maximum extent permitted.

EXHIBIT E

Acceptable Use Policy

E.1 Client shall not use the Services to transmit any content that Provider, in its sole discretion, deems objectionable, including content critical of Provider.

E.2 Client shall not exceed any usage limits established by Provider, whether or not such limits are disclosed to Client. Provider may throttle, suspend, or terminate Client's access for exceeding any such limit.

E.3 Client shall not use any automated tool, script, or third-party service to access, test, or monitor the Platform, including uptime monitoring services.

E.4 Client shall not publicly compare the Services to any competing product or service.

E.5 Client shall ensure that all of its end users comply with this Policy and shall be liable for any breach by any end user, whether or not authorized by Client.

E.6 Provider may investigate any suspected violation of this Policy and may access, review, and disclose any Client Data in connection with such investigation.

E.7 Any violation of this Policy shall constitute a material breach of the Agreement, entitling Provider to the remedies set forth in Sections 4.6 and 11.3 of the Agreement, in addition to liquidated damages of US\$50,000 per violation.

E.8 Provider may update this Policy at any time without notice, and Client is responsible for reviewing the current version before each use of the Services.

EXHIBIT F

Continuing Personal and Corporate Guaranty

F.1 FOR VALUE RECEIVED, and to induce Provider to enter into the Agreement, the undersigned guarantor(s) (each, a "Guarantor") jointly, severally, absolutely, unconditionally, and irrevocably guarantee to Provider the full and prompt payment and performance when due of all present and future obligations of Client under the Agreement, including all Fees, early termination fees, liquidated damages, indemnification obligations, and collection costs (the "Guaranteed Obligations").

F.2 This Guaranty is a guaranty of payment and not of collection. Provider may proceed directly against any Guarantor without first proceeding against Client or any collateral. Each Guarantor waives notice of acceptance, presentment, demand, protest, notice of default, and all suretyship defenses, including any defense based on modification of the Agreement, extension of time, release of collateral, or the discharge of Client in bankruptcy.

F.3 Each Guarantor consents to any amendment of the Agreement made by Provider, including amendments that increase the Guaranteed Obligations, without further notice to or consent of such Guarantor.

F.4 This Guaranty shall be binding upon each Guarantor's heirs, executors, administrators, successors, and assigns, and shall survive the death or incapacity of any Guarantor. Each Guarantor's spouse, by the execution of the Agreement by such Guarantor, shall be deemed to consent to the enforcement of this Guaranty against marital and community property.

F.5 Each Guarantor authorizes Provider to obtain credit reports on such Guarantor at any time during the Term and for five (5) years thereafter.

F.6 This Guaranty shall be governed by the laws of the State of Wyoming, and each Guarantor submits to the exclusive jurisdiction of the courts located in Laramie County, Wyoming, and waives trial by jury.

GUARANTOR: _____ Name: _____

Date: _____

EXHIBIT G

Insurance, Compliance, and Security Obligations of Client

G.1 Required Insurance. Client shall procure and maintain, at its sole expense, throughout the Term and for seven (7) years thereafter, the following insurance with carriers rated A+ or better by A.M. Best: (a) commercial general liability insurance with limits of not less than US\$10,000,000 per occurrence; (b) cyber liability and technology errors and omissions insurance with limits of not less than US\$25,000,000 per claim, covering the acts and omissions of Provider; (c) crime and fidelity insurance of not less than US\$5,000,000; and (d) umbrella liability of not less than US\$20,000,000.

G.2 Additional Insured; Waiver of Subrogation. Each policy shall name Provider and all Provider Indemnitees as additional insureds on a primary and non-contributory basis, and shall include a waiver of subrogation in favor of Provider. Client's insurers shall have no right to recover from Provider any amounts paid under such policies, including amounts paid as a result of Provider's negligence or willful misconduct.

G.3 Provider Insurance. Provider shall have no obligation to maintain any insurance for the benefit of Client.

G.4 Certificates. Client shall deliver certificates of insurance to Provider within five (5) days of the Effective Date and upon each renewal. Failure to deliver any certificate shall constitute a material breach of this Agreement, and Provider may purchase such insurance on Client's behalf and invoice the premium plus a forty percent (40%) administrative fee.

G.5 Client Security Obligations. Client shall be solely responsible for the security of all accounts, credentials, API keys, and access tokens used to access the Platform. Client shall be liable for all activity occurring under its accounts, including activity by hackers, former employees, or Provider personnel using Client credentials, and for all Fees resulting therefrom.

G.6 Regulatory Compliance. Client shall be solely responsible for determining whether the Services are suitable for Client's regulated activities, including under PCI-DSS, HIPAA, the Gramm-Leach-Bliley Act, the Children's Online Privacy Protection Act, and state consumer protection laws. Provider makes no representation that the Services comply with any such law, and Client shall indemnify Provider for any non-compliance of the Services.

G.7 Export Control and Sanctions. Client shall comply with all export control and sanctions laws with respect to the Services. Provider may, without liability, terminate this Agreement immediately if Provider determines, in its sole discretion, that continued performance may expose Provider to any regulatory, reputational, or commercial risk, and all Fees for the remainder of the Term shall remain payable.

G.8 Background Checks of Client Personnel. Provider may require Client to conduct, at Client's expense, criminal background checks, drug screening, and credit checks of any Client employee or contractor who accesses the Platform, and to provide the results to Provider upon request.

EXHIBIT H

Order Form No. 001

Field	Detail
Customer	Brightline Retail Group, Inc.
Order Effective Date	September 1, 2026
Subscription Term	60 months, auto-renewing for successive 60-month terms
Platform Edition	HorizonOS Enterprise (all modules)
Store Locations	340 (minimum billable: 400)
Named Users	250 (minimum billable: 300)
Annual Subscription Fee (Year 1)	US\$1,740,000
Implementation Fee (SOW No. 1)	US\$1,850,000 (100% prepaid)
Annual Uplift	Greater of 10% or CPI, plus Section 4.2 adjustments
Payment Terms	Net 10, wire transfer only
Promotional Discount	35% on Year 1 subscription (revocable per Schedule B.4)
Auto-Debit Authorization	Enabled (Schedule B.5)

H.1 Minimum Billable Quantities. Client shall be billed for the greater of actual usage or the minimum billable quantities stated above, even if Client never deploys the Platform at such number of locations or users. Minimum billable quantities shall increase automatically by twenty percent (20%) at each renewal.

H.2 Promotional Discount. The Promotional Discount is granted in consideration of Client's agreement to the full Term. If Client breaches the Agreement, disputes any invoice, or delivers a notice of non-renewal, the Promotional Discount shall be revoked retroactively and the full undiscounted amount for all prior periods shall become immediately due.

H.3 Order of Precedence. This Order Form is subject to the Agreement. Any additional or conflicting terms proposed by Client, including in any purchase order, vendor registration form, or supplier code of conduct, are hereby rejected and shall not bind Provider, even if signed by Provider personnel.

H.4 Binding Effect. This Order Form shall become binding upon the earliest of signature by Client, payment of any invoice, or any access to the Platform by any Client user, including during a trial or proof of concept.

H.5 **Authority.** The individual accepting this Order Form represents that he or she has full authority to bind Client. If such individual lacks authority, he or she shall be personally liable for all obligations under the Agreement.

ACCEPTED AND AGREED:

BRIGHTLINE RETAIL GROUP, INC. By: _____ Name:
_____ Title: _____ Date: _____